

facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the cause of action, based on the allegation that Defendant became indebted in the amount of \$8,732.31, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the court (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$8,732.31.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order and serve copy on Defendant.

7. 9:00 AM CASE NUMBER: L25-01777

CASE NAME: CAPITAL ONE N.A. VS. ALBA VIVEROS

NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT;

FILED BY: CAPITAL ONE N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.

The Motion and its supporting documents are timely.

This Motion is unopposed.

However, there is no Answer in the matter, and the address where Defendant was personally served with process is different than the mailing address that the Plaintiff used to provide notice of this Motion.

There is no evidence to suggest that Defendant resides at the address listed under the proof of service for this Motion.

The court does not find that Defendant was properly noticed of this Motion.

Disposition

The Motion will be continue to 9/6/26, 9am.

Plaintiff to provide notice of the Motion and the hearing to Defendant.

Plaintiff to file Order.

**8. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
AND NTC OF MTC FURTHER RESPONSES
FILED BY: SCHINDLER, JULIE A M**

TENTATIVE RULING:

This Motion has been continued to 8/11.26, 9am.

Court will provide written notice to both parties.

**9. 9:00 AM CASE NUMBER: L25-07459
CASE NAME: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK VS. YOLONDA
HARDY
MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF ON 3/24/26
FILED BY: HARDY, YOLONDA**

TENTATIVE RULING:

Counsel for Defendant filed a Motion to be relieved, along with exhibits and a Declaration.

Notice was provided to the Defendant by mail at the address where Defendant was personally served with process.

The Motion is unopposed.

Background

The court has reviewed the Declaration and Exhibits, and, since they reflect on privileged communications, will not provide any detail in this ruling.